

## 26PSCV01523 26PSCV01523

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV01523 Hearing Date: September 18, 2026 Dept: G

Plaintiff/Petitioner

Xiaodi Xu's Petition for Approval of Compromise of Claim or Action or

Disposition of Proceeds of Judgment for Plaintiff/Claimant Weiqi Han, a Minor

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff/Petitioner

Xiaodi Xu's Petition for Approval of Compromise of Claim or Action or

Disposition of Proceeds of Judgment for Plaintiff/Claimant Weiqi Han, a Minor is

GRANTED.

BACKGROUND

This

is a personal injury action arising out of a motor vehicle collision. On June 18, 2024, defendant Adrian Anthony Espinoza (Espinoza), an employee of defendants J C Tuckmar, Inc. (J C Tuckmar) and Joseph B. Volk (Volk) allegedly collided his vehicle into that containing plaintiff/petitioner Xiaodi Xu (Xu) and his minor child, plaintiff/claimant Weiqi Han (Han).

On April

28, 2026, Xu and Han (collectively, Plaintiffs) filed the Complaint. On June 9, 2026, Plaintiffs filed the operative Amended Complaint, alleging causes of action for (1) motor vehicle and (2) general negligence.

On

July 20, 2026, the parties informed the court that they settled the case. On August 3, 2026, Xu filed this petition for approval of minor's compromise, which is unopposed. On August 27, 2026, the court continued the hearing on the petition because Xu failed to serve the petition on all interested parties. On September 2, 2026, Xu filed another copy of the petition with a proof of service.

This

case is set for an order to show cause re: dismissal (settlement) and a continued hearing on the petition on September 18, 2026.

#### ANALYSIS

Xu

seeks the court's approval of a settlement reached between all parties. For the following reasons, the petition is GRANTED.

Legal

Standard

An

enforceable settlement of a minor's or incompetent's claim can only be consummated with court approval. (Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) For this purpose, a petition for approval must be presented to the court, and until it is granted, there is no final settlement. (*Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th 1596, 1603–1606.) Any settlement agreement therefore is voidable by the minor's guardian ad litem. (Id. at 1606.)

Probate

Code section 3600 et seq. governs how the settlement proceeds are to be paid. Pursuant to Probate Code section 3601, the order shall approve payment of reasonable expenses from the settlement as follows:

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator),

costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.  
(Prob. Code, § 3601, subd. (a).)

In cases pursuant to Probate Code section 3601, "unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability." (Cal. Rules of Court, rule 7.955(a)(1).) In doing so, "[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events." (Cal. Rules of Court, rule 7.955(a)(2).)

#### Discussion

Pursuant to the settlement agreement reached between the parties, J C Tuckmar agrees to pay a total of \$10,000.00. (See 8/3/2026 Pet., ¶¶ 10a–10b, 16a, 16f.) The petition requests that \$2,500.00 be used for attorney's fees and \$7,500.00 for Han. (See 8/3/2026 Pet., ¶¶ 13a, 16c, 16f.)

"In determining whether to grant a guardian ad litem's petition to approve a settlement of the ward's claims, a court must determine whether it is reasonable and in the minor's best interest."  
(Chui v. Chui (2022) 75 Cal.App.5th 873, 899.) Generally, courts must consider the following factors: 1) the circumstances of the accident or other incident giving rise to the litigation, particularly the facts bearing on the payor's potential liability and the minor's damages; 2) the amount of the proposed settlement; 3) how the settlement will be paid (e.g. in a lump sum or via an annuity); 4) the nature of the injury and the minor's current medical status and prognosis; and 5) the amount of attorneys' fees and other transaction costs being requested. (See, e.g., Kostakos v. Holewinski (Dec. 6, 2019, 37-2018-00029286-CU-PA-CTL) [nonpub. opn.],

applying Cal. Rules of Court, rule 7.950.)

Here,

regarding attorney's fees, Xu executed a retainer agreement with Han's counsel

for a 40% contingency fee. (See 8/3/2026

Pet., Attach. 17a.) The requested

attorney's fee is only 25% of Han's gross recovery after costs. (See 8/3/2026 Pet., ¶¶ 13a, 16c.) Counsel's declaration includes details about their

work in this litigation. (See 8/3/2026 Pet., Attach. 13a, ¶¶ 4–5.)

In light of this evidence, the court finds that the requested attorney's fees are reasonable.

The remaining \$7,500.00 for Han will be deposited in

insured accounts in one or more financial institutions in this state, subject

to withdrawal only on authorization of the court. (See

8/3/2026 Pet., ¶ 18b(3); see also 8/3/2026 Pet., Attach. 18b(2).)

Upon review, the court finds that the amount awarded to Han to be reasonable and finds the disposition of the funds is proper.

Accordingly,

the petition for approval of minor's compromise is GRANTED.

#### CONCLUSION

For

these reasons, the petition for approval of minor's compromise is GRANTED.